



CHAPTER 9

An Act to consolidate the enactments relating to entertainments duty.

[20th February, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, there shall be charged, levied and paid on all payments for admission to chargeable entertainments an excise duty (in this Act referred to as “entertainments duty”) of the amount (if any) by which the amount of a payment, excluding the amount of the duty, exceeds eleven pence.

Charge and
rate of
entertainments
duty.

(2) The entertainments duty chargeable in respect of any entertainment shall be reduced by one third if the Commissioners of Customs and Excise (hereinafter referred to as “the Commissioners”), on an application made in such manner as they may direct, are satisfied that—

- (a) the entertainment consists partly of an item or items which make it a chargeable entertainment and partly of other items, but is all given in one auditorium; and
- (b) not less than one quarter of the total time taken by the entertainment (excluding intervals) is taken by those other items.

(3) The provisions of the First Schedule to this Act shall have effect for the purpose of conferring exemptions from entertainments duty.

Chargeable entertainments.

2. The entertainments which are chargeable entertainments for the purposes of this Act are entertainments which consist wholly or partly of a cinematograph show or a television show:

Provided that an entertainment shall not be a chargeable entertainment by reason of the inclusion in it of any cinematograph or television show which is merely ancillary to a lecture or exhibition or designed to give instruction or information relevant to the purposes of a lecture or exhibition.

Collection of duty.

3.—(1) Entertainments duty shall be charged in respect of each person admitted for payment, and—

- (a) in the case of admission by stamped ticket, shall be paid by means of a stamp on the ticket of admission; and
- (b) in the case of admission otherwise than by stamped ticket, shall be calculated and paid on the number of admissions.

(2) Entertainments duty, in the case of admission otherwise than by stamped ticket, shall be recoverable from the proprietor of the entertainment, and may, if the amount of duty is less than fifty pounds, without prejudice to any other means of recovery, be recoverable by the Commissioners summarily as a civil debt.

(3) No person shall be admitted for payment to any entertainment where the payment is subject to entertainments duty except—

- (a) with a ticket stamped with a stamp (not before used) denoting that the proper entertainments duty has been paid; or
- (b) in special cases with the approval of the Commissioners, through a barrier which, or by means of a mechanical contrivance which, automatically registers the number of persons admitted;

unless the proprietor of the entertainment has made arrangements approved by the Commissioners for furnishing returns of the payments for admission to the entertainment and has given security up to an amount and in a manner approved by the Commissioners for the payment of duty.

(4) If any person is admitted for payment to any place of entertainment and the provisions of this section are not complied with, the person admitted and the proprietor of the entertainment to which he is admitted shall be liable in respect of each offence to a penalty, in the case of the person admitted of five pounds, and in the case of the proprietor of fifty pounds, and the proprietor shall in addition be liable to pay any duty which should have been paid.

(5) The provisions (including the penal provisions) of the Stamp Duties Management Act, 1891, as amended by any subsequent Act, and the provisions set out in the Second Schedule to the Post Office Act, 1953, shall apply to the stamps used for denoting entertainments duty.

4.—(1) Where the payment for admission to an entertainment is made by means of a lump sum paid as a subscription or contribution to any club, association or society, or for a season ticket or for the right of admission to a series of entertainments or to any entertainment during a certain period of time, then subject to the provisions of this section the entertainments duty shall be paid on the amount of the lump sum. Special provisions as to payments for admission by lump sum, &c

(2) Where payment for admission to two or more entertainments is made by means of a lump sum within the meaning of the foregoing subsection and the Commissioners are satisfied—

(a) that the lump sum constitutes full payment for admission to each of the entertainments in respect of which it is paid; and

(b) that all of those entertainments are to take place within a period of one year,

the amount of the duty to be charged in respect of that sum shall be an amount equal to the aggregate of the amounts (if any) which would be charged by way of duty if separate payments were made for admission to each of those entertainments, being payments of such amounts as appear to the Commissioners to be proportionate respectively to the values of the rights of admission to those entertainments, and of which the aggregate is equal to the said lump sum.

(3) Where payment for admission to two or more entertainments is made by means of a single payment representing the aggregate of separate prices of admission to those entertainments respectively, and not being a lump sum within the meaning of subsection (1) of this section, and the Commissioners are of opinion that the said prices of admission as taken for the purpose of arriving at the single payment are not substantially proportionate to the respective values of the rights of admission to the entertainments to which they relate, the Commissioners may direct that the amount of the duty to be charged in respect of the said payment shall be ascertained in accordance with the provisions of the last foregoing subsection as if that payment were a payment to which that subsection applies, and those provisions shall have effect accordingly.

5. Where the Commissioners are of opinion that the payment of a lump sum or any payment for a ticket represents payment for other privileges, rights or purposes besides the admission to an entertainment, the entertainments duty shall be charged on such an amount as appears to the Commissioners to represent the right of admission to entertainments. Special provisions as to combined payments for admission and other benefits.

Regulations.

6.—(1) The Commissioners may make regulations for securing the payment of entertainments duty and generally for carrying the provisions of this Act into effect, and in particular—

- (a) for the supply and use of stamps or stamped tickets, or for the stamping of tickets sent to be stamped;
- (b) for securing the defacement of stamps when used;
- (c) for the use of tickets covering the admission of more than one person and the calculation of the duty thereon;
- (d) for the payment of duty on the transfer from one part of a place of entertainment to another; and
- (e) for controlling the use of barriers or mechanical contrivances (including the prevention of the use of the same barrier or mechanical contrivance for payments of a different amount) and for securing proper records of admission by means of barriers or mechanical contrivances.

(2) The power to make regulations conferred by this section shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) If any person acts in contravention of or fails to comply with regulations under this section he shall be liable in respect of each offence to a penalty of fifty pounds.

**Power of
Commissioners
to delegate
functions to
local or police
authorities.**

7.—(1) The Commissioners may, if they think fit, by agreement in writing with any local authority, or police authority, arrange for the exercise by that authority, either concurrently with the Commissioners or to the exclusion of the Commissioners, of any powers of the Commissioners with respect to entertainments and entertainments duty; and so far as required for the purpose of giving effect to any such arrangement the provisions of this Act and any regulations made thereunder shall have effect as if the local authority or police authority and any officer authorised by that authority were mentioned therein in addition to, or substituted for, the Commissioners and an officer of the Commissioners.

(2) Any arrangement under this section may provide for the payment out of moneys provided by Parliament of any expenses incurred by the local authority or police authority in carrying out the arrangement.

(3) For the purposes of this section the expression “local authority” means—

- (a) as respects the administrative county of London, excluding the City of London, the London County Council;

- (b) as respects the City of London, the Common Council in relation to television entertainments and the London County Council in relation to cinematograph entertainments;
- (c) as respects any borough in England or Wales outside the administrative county of London, the borough council;
- (d) as respects any urban district in England or Wales with a population of over ten thousand, the urban district council;
- (e) as respects any administrative county in England or Wales (excluding the area of any such borough or urban district), the county council;
- (f) as respects any burgh in Scotland, the town council;
- (g) as respects any county in Scotland (excluding the area of any burgh), the county council:

Provided that where the council of any borough in England or Wales (not being a county borough), or of any urban district in England or Wales, or the council of any burgh in Scotland, agree in writing with the county council that the area of the first-mentioned council should be included in the area of the county for the purposes of this subsection, that area shall be so included.

8.—(1) Any officer of the Commissioners authorised by them for the purpose may enter any place of entertainment while the entertainment is proceeding, and any place ordinarily used as a place of entertainment at any reasonable times, with a view to seeing whether the provisions of this Act or any regulations made thereunder are being complied with.

(2) If any person prevents or obstructs the entry of any officer authorised as aforesaid he shall be liable on summary conviction to a fine not exceeding twenty pounds.

9.—(1) For the purposes of this Act:—

Interpretation.

- “admission to an entertainment” includes admission to any place in which the entertainment is held;
- “admission” means admission as a spectator or one of an audience.

(2) For the purposes of this Act “payment on admission” includes any payment made by a person who, having been admitted to one part of a place of entertainment, is subsequently admitted to another part thereof for admission to which a payment involving duty or more duty is required; and where a person who has made a payment for admission to an entertainment subsequently on being admitted to another part of the place of entertainment makes a further payment for admission in respect

of the same entertainment, there shall, for the purposes of entertainments duty, be deemed to have been one payment equal to the aggregate amount of the several payments.

(3) Entertainments duty is chargeable on a payment irrespective of the person to whom the payment is made.

(4) Entertainments duty is chargeable on payments of rent made in respect of an interest in any premises which is primarily acquired for the purpose of securing admission to an entertainment.

(5) In this Act references to the proprietor of an entertainment include references to any person responsible for the management thereof, and also include references to any person on whose behalf payments for admission to an entertainment are received.

Application of
Act, repeals
and savings.

10.—(1) The foregoing provisions of this Act shall apply, and be deemed to have applied, to payments (whenever made) for admission to entertainments given after the thirty-first day of December, nineteen hundred and fifty-seven.

(2) As respects payments (whenever made) for admission to entertainments given as aforesaid the enactments specified in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) The repeals effected by this Act shall not affect any agreement, allowance, application, approval, arrangements, authorisation, claim, decision, direction, regulations, stamp or other thing made, given, issued or done under or in pursuance of any of the repealed enactments, but any such thing if having effect at the coming into operation of the repeal shall continue to have effect as if made, given, issued or done under or in pursuance of the corresponding provision of this Act.

(4) Nothing in the foregoing subsection shall be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

Short title and
extent.

11.—(1) This Act may be cited as the Entertainments Duty Act, 1958.

(2) This Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 1.

EXEMPTIONS FROM ENTERTAINMENTS DUTY

PART I

QUALIFICATIONS FOR EXEMPTION

Educational Entertainments

1. An entertainment shall qualify for exemption from entertainments duty if it is wholly educational.

2. An entertainment shall qualify for exemption from entertainments duty if it is provided by a non-profit-making body established and conducted for partly educational purposes.

Charitable Entertainments

3. An entertainment shall qualify for exemption from entertainments duty if it is provided by a non-profit-making body of a permanent character established and conducted wholly for charitable purposes consisting in the provision of entertainments.

4. An entertainment shall qualify for exemption from entertainments duty if the net takings are wholly devoted to philanthropic or charitable purposes and either—

(a) the expenses do not amount to more than one half of the gross takings; or

(b) the entertainment is provided—

(i) by a body of a permanent character established and conducted wholly or partly for philanthropic or charitable purposes and not regularly engaged in providing entertainments by way of business; or

(ii) by a miners' welfare institute established and conducted for the purpose of social welfare activities within the meaning of the Miners' Welfare Act, 1952;

and the expenses added to the duty chargeable apart from the exemption are less than the gross takings by at least one twentieth of the latter.

For the purposes of this paragraph "expenses" means the expenses incurred in connection with the entertainment by the person providing it, whether in respect of the production of the entertainment or any other matter (but not including the duty which is in question nor any sums required under section one of the Sunday Entertainments Act, 1932, to be paid to any person for the purpose of being applied to charitable objects nor any part of the expenses so incurred which is met otherwise than out of the gross takings): "gross takings" means the sums received by that person in connection with the entertainment, whether payments for admission, for programmes, refreshments or the like, for rights of reproduction or for any other matter (but not including any donation made towards defraying the costs of the entertainment): and "net takings" means the gross takings so far as not used to meet expenses.

1ST SCH.
—cont.*Indoor Entertainments in rural Areas*

5. Any entertainment shall qualify for exemption from entertainments duty if it is given in a borough, urban district or rural parish within the meaning of the Local Government Act, 1933 (or, in Scotland, a small burgh within the meaning of the Local Government (Scotland) Act, 1947, landward parish or landward part of a parish partly landward and partly burghal) with a population of not more than three thousand or (if it is more than three thousand) not more than six hundred and forty to the square mile, except—

(a) entertainments given elsewhere than in a building attached to permanent foundations; and

(b) entertainments at which seating accommodation is provided for more than four hundred people.

For the purposes of this paragraph, the population of any area shall be taken according to the last published census as it would be taken for the purposes of the said Act of 1933 or 1947, as the case may be, unless since the date of that census there has been a movement of population into or out of the area on such a scale as substantially to alter the character of the area as a whole.

PART II

SUPPLEMENTARY PROVISIONS AS TO EXEMPTIONS

Interpretation of Provisions conferring Exemption

6. For the purposes of any exemption from entertainments duty, “non-profit-making body” means a body of persons (whether incorporated or not) which is not established or conducted for profit.

7. Where the conditions on which an entertainment qualifies for exemption include any condition relating to the person providing the entertainment, then, for an entertainment to qualify which is provided by two or more persons in combination, the condition must be satisfied in relation to each of those persons.

Procedure for obtaining and giving Effect to Exemption

8. Except as otherwise provided, exemption from duty shall not be allowed in respect of any entertainment unless, before the entertainment is given, it is shown to the satisfaction of the Commissioners that the entertainment qualifies for exemption; but where exemption is allowed after the entertainment is given, effect shall be given to it by repayment of duty.

9. Exemption from duty may be allowed after the entertainment is given in any case where the Commissioners are satisfied that there is sufficient reason for the delay in making or establishing the claim for exemption.

10. A claim for exemption under paragraph 4 of this Schedule may be made either before or after the entertainment is given; and where the claim is made beforehand, the Commissioners may allow the exemption if in their opinion the entertainment will qualify for it according to the probable amounts of the gross takings and expenses, or may postpone a decision on the claim until those amounts are ascertained.

11. If on a claim for exemption under paragraph 1 of this Schedule there is any dispute whether the entertainment is wholly educational, that question shall be decided by the Minister of Education or, in the case of entertainments in Scotland, by the Secretary of State for Scotland.

1st SCH.
—cont.

SECOND SCHEDULE

Section 10.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
6 & 7 Geo. 5. c. 11.	The Finance (New Duties) Act, 1916.	The whole Act.
12 & 13 Geo. 5. c. 17.	The Finance Act, 1922 ...	Section eleven; in section forty-nine, subsection (1).
14 & 15 Geo. 5. c. 21.	The Finance Act, 1924 ...	Section six.
14 Geo. 6. c. 15	The Finance Act, 1950 ...	The Fourth Schedule.
1 & 2 Eliz. 2. c. 34.	The Finance Act, 1953 ...	Section nine.
5 & 6 Eliz. 2. c. 49.	The Finance Act, 1957 ...	Section one; the First Schedule; in the Ninth Schedule, Part I.

*Table of Statutes referred to in this Act*

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Stamp Duties Management Act, 1891... ..	54 & 55 Vict. c. 38.
Sunday Entertainments Act, 1932	22 & 23 Geo. 5. c. 51.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Miners Welfare Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 23.
Post Office Act, 1953	1 & 2 Eliz. 2. c. 36.

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